

MASHARTI YA HUDUMA / TERMS OF SERVICE

e-raia Kenya

1. Kuhusu Masharti haya

Masharti haya yanasimamia matumizi ya e-raia Kenya, ikiwemo e-raia.com/ke, tovuti, programu, ripoti, dashibodi, API na huduma za uthibitishaji zinazoendeshwa na Biosec Solutions Limited ('Biosec', 'sisi').

Kwa kufungua akaunti, kukubali Masharti, kulipa, kuwasilisha ombi au kuona matokeo, unaingia mkataba na Biosec. Ilani ya Faragha na masharti maalum ya huduma ni sehemu ya mkataba.

2. Aina ya Jukwaa

e-raia Kenya ni jukwaa binafsi la uthibitishaji wa utambulisho na taarifa. Si tovuti ya serikali na Biosec si mamlaka ya serikali.

Huduma zinazotolewa kwa sasa ni uthibitishaji wa Kitambulisho cha Taifa (National ID), Kadi ya Mgeni (Alien Card), na nambari ya utambulisho wa gari (VIN). Kila huduma itatolewa tu pale ambapo mtoa huduma na Taasisi Chanzo wameruhusu matumizi na ufichuaji huo. Biosec itasasisha Jukwaa na nyaraka za kisheria zinazotumika kabla ya kuanzisha aina nyingine ya uthibitishaji. Ombi linaweza kutumwa kwa taasisi ya serikali, mtoa data aliyeidhinishwa au chanzo kingine halali ('Taasisi Chanzo'). Biosec haitengenezi wala kudhibiti rekodi rasmi ya msingi.

e-raia haitoi eLogbook ya NTSA, haitendi kama wakala wa NTSA, wala kutekeleza shughuli rasmi ya NTSA. Uthibitishaji wa VIN utatolewa tu pale ambapo mtoa huduma amethibitisha mamlaka halali ya chanzo na ruhusa ya kuwasilisha jibu lenye mipaka kwa Biosec na mtumiaji aliyeidhinishwa.

Kwa kawaida Biosec haiunganishi moja kwa moja na kanzi data ya serikali au taasisi ya kisheria. Maombi ya Uthibitishaji hupitishwa kupitia watoa huduma wa uthibitishaji na ufikiaji wa data walio chini ya mkataba, ambao wanaweza kujumuisha Smile ID, Prembly IdentityPass na Mono kulingana na Huduma na upatikanaji. Mtoa huduma anaweza kufikia Taasisi Chanzo moja kwa moja au kupitia mshirika wa juu aliyeidhinishwa.

Biosec hufanya uchunguzi wa mtoa huduma na hutafuta uthibitisho wa maandishi na wa kimkataba kuhusu ufikiaji halali wa chanzo, ruhusa ya kutoa taarifa kwa Biosec na watumiaji walioidhinishwa, usiri, usalama, uhifadhi, ukaguzi, taarifa za matukio na uchakataji wa kimataifa. Mtoa huduma au Taasisi Chanzo anaweza kuwa mdhibiti huru kwa sehemu za mtiririko.

3. Ustahiki na akaunti

Lazima uwe na umri wa miaka 18 au zaidi na uwezo wa kisheria wa kuingia mkataba. Ukiwakilisha shirika, unathibitisha mamlaka yako ya kulifunga. Mzazi, mlezi au mwakilishi halali atumie akaunti yake mwenyewe iwapo huduma inamhusu mtoto au mtu asiye na uwezo wa kisheria.

Toa taarifa sahihi, linda nenosiri na msimbo wa muda mmoja, usishiriki akaunti binafsi, na ripoti ufikiaji usioidhinishwa kwa ke-info@e-raia.com. Tunaweza kufunga akaunti kwa muda tunapochunguza udanganyifu au tishio la usalama.

4. Jinsi huduma inavyofanya kazi

Chagua huduma, ingiza vigezo na kusudi, lipa, toa mamlaka au idhini inayohitajika, kisha upokee matokeo au hali inayopatikana. Soma bei, masharti ya idhini, muda wa ufikiaji na sera ya kurejesha fedha kabla ya kulipa.

5. Kusudi halali na mamlaka

Kwa kila ombi unathibitisha kuwa una kusudi mahususi na halali, una mamlaka ya kuwasilisha taarifa na kupata matokeo, umepata idhini inayohitajika, umeingiza taarifa sahihi, na utatumia matokeo kwa kusudi lililotangazwa tu.

Hifadhi ushahidi wa kusudi, mamlaka na idhini. Biosec inaweza kuuomba, kusimamisha ombi au akaunti, au kuripoti matumizi mabaya inapohitajika kisheria.

6. Matumizi yaliyokatazwa

Huruhusiwi kutafuta bila mamlaka, kupita au kughushi idhini, uthibitishaji, malipo au ulinzi; kujifanya mtu mwingine; kutumia vitambulisho vilivyoibwa; kukusanya data kwa wingi; kuvuruga au kuchambua mfumo kinyume cha ruhusa; kuuza, kuchapisha tena au kuunda hifadhidata ya matokeo bila ruhusa; kubadili matokeo kwa udanganyifu; au kutumia taarifa kwa udanganyifu, unyanyasaji, ubaguzi, ufuatiliaji haramu au uhalifu.

7. Idhini na mhusika wa data

Pale idhini inapohitajika, lazima itolewe kwa hiari, kwa kusudi maalum, baada ya kueleweshwa na kwa kitendo wazi. Ukimya, kutotenda, udanganyifu au kisanduku kilichowekwa alama mapema si idhini. Mhusika anaweza kukataa au kuondoa idhini; kuondoa hakuathiri uchakataji halali uliofanyika kabla yake.

8. Matokeo na rekodi za chanzo

Biosec inalenga kutuma ombi kwa usahihi na kuonyesha jibu lililopokelewa. Taasisi Chanzo inawajibika kwa rekodi ya msingi. Matokeo ni picha ya wakati wa ombi, yanaweza kubadilika na si cheti rasmi isipokuwa yamesemwa hivyo.

Hitilafu ya mfumo iripotiwe haraka. Pingamizi kuhusu rekodi rasmi kwa kawaida lipelekwe kwa Taasisi Chanzo.

9. Bei, malipo na marejesho

Bei huonyeshwa kabla ya malipo katika Kenya shillings (KES), dola za Marekani au sarafu nyingine inayokubaliwa. Mtoa malipo anaweza kutoza ada za benki, kadi, mobile money au ubadilishaji.

Biosec ndiye mwendeshaji wa mkataba na mfanyabiashara kutoka Nigeria isipokuwa ukurasa wa malipo utaje mfanyabiashara au mshirika mwingine wa ukusanyaji. Kuonyesha bei kwa shilingi za Kenya au kutumia njia ya malipo ya ndani hakumaanishi kuwa Biosec ina kampuni iliyosajiliwa nchini Kenya.

Utafutaji uliotumwa kwa usahihi unaweza kutozwa hata usipate ulinganifu au upate taarifa chache ikiwa hili limeelezwa kabla ya malipo. Kigezo kibaya kilichoingizwa na mtumiaji kwa kawaida hakirejeshewi baada ya kutumwa.

Biosec kwa kawaida itarudia huduma, kutoa salio au kurejesha fedha iwapo malipo yalichukuliwa bila ombi kuanzishwa, kulikuwa na makato mara mbili, au hitilafu ya Biosec ilizuia matokeo. Haki za lazima za mlaji zinaendelea kutumika.

10. Watumiaji wa mashirika

Shirika lazima liruhusu wafanyakazi walioidhinishwa tu, litumie akaunti binafsi inapowezekana, liweke udhibiti wa ufikiaji, lilinde matokeo, liondoe ruhusa zisizohitajika na lishirikiane na ukaguzi halali.

11. Faragha, usalama na upatikanaji

Data binafsi hushughulikiwa kwa mujibu wa Ilani ya Faragha na sheria. Linda matokeo, punguza ufikiaji, epuka njia zisizo salama na yafute yasipohitajika. Uwezo wa kupakua au kushiriki si ruhusa ya kisheria.

Huduma hutegemea mitandao, malipo na Taasisi Chanzo. Tunaweza kubadilisha, kusimamisha au kuondoa huduma kwa sababu za sheria, usalama, biashara au upatikanaji wa chanzo.

12. Kusimamisha na kufunga akaunti

Tunaweza kusimamisha au kufunga akaunti mara moja tukihisi udanganyifu, ombi haramu, tishio la usalama, kutolipa, kuvunja Masharti, agizo la Taasisi Chanzo au wajibu wa kisheria. Tutatoa taarifa na nafasi ya kueleza inapofaa.

13. Haki miliki

Jukwaa, programu, muundo, maandishi, ripoti na alama ni mali ya Biosec au watoa leseni. Unapewa leseni ndogo, inayoweza kufutwa na isiyohamishika kwa matumizi yaliyoruhusiwa. Taasisi Chanzo huhifadhi haki katika rekodi na alama zake.

14. Dhamana na uwajibikaji

Jukwaa hutolewa kadiri linavyopatikana. Kwa kiwango kinachoruhusiwa na sheria, Biosec haihakikishi kwamba rekodi za chanzo ni kamili, za sasa au bila kosa, wala kwamba kila ombi litafanikiwa.

Hakuna kipengele kinachoondoa wajibu usioweza kuondolewa kisheria, ikiwemo udanganyifu, makosa ya kukusudia, uzembe mkubwa inapohusika, haki za lazima za mlaji na wajibu wa ulinzi wa data.

Kwa kiwango kinachoruhusiwa, Biosec haiwajibiki kwa hasara zisizo za moja kwa moja. Kwa huduma ya kulipiwa, jumla ya wajibu wa kimkataba kwa kawaida haitazidi kiasi kilicholipwa kwa huduma husika isipokuwa sheria itake vingine.

15. Malalamiko na sheria inayotumika

Malalamiko ya huduma: ke-info@e-raia.com. Masuala ya faragha: ke-info@e-raia.com. Unaweza pia kulalamika kwa Office of the Data Protection Commissioner of Kenya (ODPC) kupitia odpc.go.ke.

Masharti haya na mkataba na Biosec kwa jumla yanasimamiwa na sheria za Jamhuri ya Shirikisho la Nigeria. Uchaguzi huu hauondoi haki za lazima za mlaji, faragha, ulinzi wa data au haki nyingine zinazotumika kwako au kwa uchakataji nchini Kenya ambazo haziwezi kuondolewa kisheria. Mahakama zenye mamlaka nchini Nigeria zina mamlaka juu ya migogoro na Biosec, bila kumzuia mlaji au mhusika kutumia jukwaa, mdhibiti au tiba ya lazima inayopatikana chini ya sheria ya Kenya.

16. Mawasiliano

Biosec Solutions Limited (RC 901419)

Afisa wa Ulinzi wa Data: info@biosec.com.ng

Msaada: ke-info@e-raia.com

Jukwaa: e-raia.com/ke

ENGLISH VERSION

1. About these Terms

These Terms of Service govern access to and use of e-raia Kenya, including e-raia.com/ke, related websites, mobile applications, dashboards, reports, communications, APIs and verification services made available by Biosec Solutions Limited ('Biosec', 'we', 'us' or 'our').

By creating an account, accepting these Terms, paying for a service, submitting a verification request, accessing a result or otherwise using the Platform, you enter a binding agreement with Biosec. The applicable Privacy Notice and any service-specific notice form part of that agreement.

Where a separately signed enterprise, API, government or institutional agreement applies, that agreement prevails only to the extent of a direct conflict.

2. About the Platform

e-raia Kenya is a private identity and information verification platform. It is not a government portal and Biosec is not a government authority.

The Services currently offered are National ID verification, Alien Card verification and vehicle identification number (VIN) verification. Each Service remains subject to source availability, required approvals, the provider's authority and the permitted-use terms of the relevant Source Institution. Biosec will update the Platform and applicable legal notices before introducing another verification category.

e-raia does not provide an NTSA eLogbook, act as an NTSA agent or perform an official NTSA transaction. VIN verification will be offered only where the provider demonstrates lawful source authority and permission to disclose a limited result to Biosec and the authorised user.

The Platform may transmit a request to and return information from a government authority, statutory body, licensed database operator, vehicle-information provider, payment provider or other authorised source ('Source Institution'). Biosec does not create or control the underlying official record.

Biosec does not ordinarily connect directly to the underlying government or statutory database. Verification Requests are routed through contracted verification and data-access providers, which may include Smile ID, Prembly IdentityPass and Mono, depending on the Service and availability. A provider may access a Source Institution directly or through an authorised upstream partner.

Biosec undertakes provider due diligence and seeks written and contractual assurances concerning lawful source access, permitted onward disclosure to Biosec and authorised users, confidentiality, security, retention, audit, incident notification and cross-border processing. A provider or Source Institution may act as an independent controller for parts of the flow and may apply its own legally required notice or conditions.

3. Key definitions

'Account' means a registered user profile. 'Business User' means a person using the Platform for an organisation. 'Personal Data' has the meaning given by applicable data-protection law. 'Verification Request' means a search or authentication request submitted through the Platform. 'Verification Result' means the response, report, match, no-match, status or error returned. 'Verification Subject' means the person to whom the requested information relates. 'Service' means a verification or related function offered through the Platform.

4. Eligibility and electronic acceptance

You must be at least 18 years old and legally capable of entering a binding agreement to create an Account or purchase a Service. A parent, guardian or other authorised adult must use their own Account where a lawful Service concerns a child or person lacking legal capacity.

If you act for an organisation, you confirm that you have authority to bind it. Electronic acceptance, receipts, notices and records satisfy writing requirements to the extent permitted by law.

5. Account and security

Provide complete and accurate registration information and keep it current. Do not create an Account using another person's identity or contact details without lawful authority.

Keep passwords, one-time passwords and authentication devices confidential; do not share an individual Account; use multi-factor authentication where offered; and notify ke-info@e-raia.com promptly of suspected unauthorised access.

You are responsible for activity caused by your acts, omissions, credential sharing or failure to use reasonable security. You are not responsible for activity caused solely by a security failure within systems controlled by Biosec. We may temporarily lock an Account while investigating suspected compromise, fraud or unlawful use.

6. How verification services work

The typical process is: select a Service; enter search criteria and the declared purpose; complete payment; obtain or demonstrate any required authority or consent; transmit the request to the relevant Source Institution; and receive the available result or status.

The request may be transmitted from Biosec's systems in Nigeria to a contracted provider and, where applicable, an upstream provider or Source Institution in Kenya or another permitted location. The response returns through that chain to the Platform. Biosec limits the fields transmitted to those reasonably required for the selected Service.

A Service description may state additional completion criteria, access periods, consent steps, permitted purposes, fees and refund rules. Review it before payment.

7. Lawful purpose, authority and user assurances

For every Verification Request, you warrant that you have a specific lawful purpose; are authorised to submit the criteria and obtain the result; have obtained any consent or permission required by law or the Source Institution; have entered accurate information; and will use and disclose the result only for the declared purpose.

You must retain reasonable evidence of purpose, authority and consent. Biosec may request that evidence, suspend a request or Account, preserve records, or report suspected misuse where required or reasonably necessary.

Do not use a result as the sole basis for a decision significantly affecting a person where applicable law requires further assessment, notice, human review or an opportunity to challenge the record.

8. Prohibited use

You must not submit unlawful or unauthorised searches; falsify or bypass consent, authentication, payment or security controls; impersonate a Verification Subject; use stolen identifiers; scrape, bulk-query, reverse engineer, e-raia.com/ke • ke-info@e-raia.com

overload or disrupt the Platform; build a database from results; sell or republish results without written authority; alter results misleadingly; or use information for fraud, harassment, intimidation, discrimination, unlawful surveillance or crime.

You must comply with Data Protection Act, 2019 and applicable regulations, consumer-protection, electronic-transactions, cybersecurity, credit-reporting and other applicable laws.

9. Consent and Verification Subjects

Some Services require the Verification Subject to approve a request using a registered telephone number, email, one-time password, authentication process or another affirmative method. Other Services may rely on another lawful basis where consent is not required.

Consent must be freely given, specific, informed and unambiguous. Silence, inactivity, deception or pre-ticked boxes do not constitute valid consent. A Verification Subject may refuse or withdraw consent, without invalidating processing lawfully completed before withdrawal.

A consent-based Service may fail where the Verification Subject cannot access the contact details held by the Source Institution, does not respond or refuses consent.

10. Verification Results and source records

Biosec aims to transmit requests accurately and return the response received from the Source Institution. The underlying record is supplied and maintained by that institution.

A result is normally a snapshot at the time of the request, may later change, and is not an official certificate unless expressly described as one. A match does not by itself prove that a person presenting information is physically the same person in the source record unless the Service includes an appropriate authentication step.

Report a suspected Platform transmission or display error promptly. A dispute concerning the underlying record may need to be directed to the Source Institution; Biosec will provide reasonable assistance but cannot amend a record it does not control.

11. Fees, payments and taxes

Prices are displayed before payment and may be stated in Kenya shillings (KES), United States dollars or another supported currency. You authorise the payment provider to debit the selected method. Currency conversion, mobile-money, bank, card-network or gateway charges may be imposed by third parties.

Biosec is the contracting operator and merchant from Nigeria unless the checkout identifies another merchant or collection partner. Displaying a price in local currency or using a local payment channel does not mean that Biosec has a company incorporated in Kenya.

Prices may include or exclude taxes as indicated. Biosec may change future prices, but a change does not alter a completed purchase. Keep the transaction reference and report duplicate or disputed debits promptly.

12. Refunds, reversals and service credits

A completed and correctly transmitted search may be chargeable even if it returns no match, limited data or an unfavourable result, where that was disclosed before payment. A wrong identifier entered by the user is normally non-refundable once transmitted.

Biosec will ordinarily re-perform, credit or refund where payment was taken but no request was initiated, a duplicate debit occurred, or a failure within systems controlled by Biosec prevented delivery. For source downtime, failed consent delivery or gateway delay, the remedy shown in the service notice may be retry, wallet credit, partial refund or full reversal.

Refunds are returned through the original channel where practicable and may take the payment provider's processing period. Mandatory consumer rights are not excluded.

13. Organisational users

A Business User must ensure that only trained and authorised personnel use the Platform; assign individual credentials where available; maintain internal access controls; define permitted purposes; prevent unauthorised disclosure; and promptly remove access when a person changes role or leaves.

The organisation is responsible for its authorised users and must cooperate with audits or investigations reasonably required by Biosec, a Source Institution or a regulator.

14. Privacy, confidentiality and downloaded results

Personal Data is handled as described in the e-raia Kenya Privacy Notice and applicable law. You must protect results with safeguards appropriate to their sensitivity, limit access, avoid sending them through insecure channels, and delete them when no longer needed.

The fact that the Platform permits download, screenshot or sharing does not authorise disclosure. You are responsible for lawful handling after a result is delivered to you.

15. Availability, changes and third parties

Services depend on telecommunications, payment networks, Source Institutions and other systems outside Biosec's control. We do not guarantee uninterrupted availability or a particular completion time unless expressly stated.

We may add, modify, suspend or withdraw a Service for security, legal, regulatory, commercial or source-access reasons. Material adverse changes will be notified where reasonably practicable. Third-party websites and services have their own terms.

16. Suspension and termination

We may suspend or terminate access immediately where we reasonably suspect fraud, unlawful searches, security threats, non-payment, breach of these Terms, a Source Institution instruction or a legal requirement. Where appropriate, we will provide notice and an opportunity to explain or appeal.

You may stop using the Platform and request Account closure. Closure does not erase records that must be retained for law, audit, security, disputes or legal claims. Pending refunds and valid wallet balances will be handled under the applicable service terms and law.

17. Intellectual property

The Platform, software, design, text, graphics, reports, trademarks and other materials are owned by or licensed to Biosec. We grant you a limited, non-exclusive, revocable and non-transferable licence to use the Platform and legitimately obtained results for the permitted purpose.

Do not copy, modify, distribute, reverse engineer, remove notices from or commercially exploit Platform materials except as expressly authorised or permitted by law. A Source Institution retains rights in its records, marks and materials.

18. Warranties and responsibility

The Platform is provided on an 'as available' basis. To the extent permitted by law, Biosec does not warrant that Source Institution records are complete, current or error-free, or that every request will succeed.

Nothing excludes obligations that cannot lawfully be excluded, including liability for fraud, wilful misconduct, gross negligence where applicable, death or personal injury caused by negligence, mandatory consumer remedies, or data-protection responsibility that cannot be limited.

19. Limitation of liability and indemnity

To the extent permitted by law, Biosec is not liable for indirect, incidental, special or consequential loss, lost profits or business interruption arising from use of the Platform. For a paid consumer Service, Biosec's aggregate contractual liability for the affected transaction will ordinarily not exceed the amount paid for that Service, except where law requires otherwise.

A Business User will indemnify Biosec against third-party claims arising from that user's unlawful request, lack of authority, unauthorised disclosure, misleading alteration of a result or material breach of these Terms, except to the extent caused by Biosec's own breach or wrongdoing.

20. Complaints and disputes

Contact ke-info@e-raia.com for service complaints and ke-info@e-raia.com for privacy matters. Include the Account, transaction reference, date, Service and requested remedy. We will investigate fairly and may ask for supporting information.

Privacy complaints may also be submitted to the Office of the Data Protection Commissioner of Kenya (ODPC) through its current official channel at odpc.go.ke. Consumer complaints may be taken to the competent consumer authority or court as permitted by law.

21. Governing law and general terms

These Terms and the contract with Biosec are generally governed by the laws of the Federal Republic of Nigeria. This choice does not exclude any mandatory consumer, privacy, data-protection or other rights that apply to you or to processing in Kenya and cannot lawfully be waived. Courts of competent jurisdiction in Nigeria have jurisdiction over disputes with Biosec, without preventing a consumer or data subject from using any mandatory local forum, regulator or remedy available under applicable law.

If a provision is invalid, the remaining provisions continue. Delay in enforcing a right is not a waiver. You may not assign your Account without consent. Biosec may assign the agreement as part of a reorganisation, financing, merger or transfer of the relevant business, subject to law and notice where required.

The latest version is published on the Platform. Material changes will be communicated where reasonably practicable. Continued use after the effective date constitutes acceptance, but changes do not retrospectively remove accrued rights.

22. Contact

Biosecur Solutions Limited (RC 901419)

Data Protection Officer: info@biosec.com.ng

General support: ke-info@e-raia.com

Platform: e-raia.com/ke